

Smt. Dujiya v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 14 March 2013 · WRIT - C No. - 14444 of 2013 · **Sharing under cl. 4.29 permitted; licensee to keep petitioner's supply unaffected.**

HEADNOTE

Clause 4.29 of the U.P. Electricity Supply Code, 2005 permits a distribution licensee to give supply to other consumers from a connection already given to an existing consumer. The High Court found no defect in that conduct, but directed the licensee to ensure that supply to the original consumer is not affected. Writ disposed of.

FACTUAL SUMMARY

The petitioner, an irrigation consumer, had taken a tube-well electricity connection and paid for erection of the supply pole. Respondent no. 2, the distribution licensee, began giving electricity connections to other consumers from the same cable. She apprehended that supply to her tube-well would be affected and filed this writ petition. Counsel for the licensee relied on Clause 4.29 of the U.P. Electricity Supply Code, 2005 as permitting such sharing.

REUSABLE CONSTRUCTIONS

1. Clause 4.29 of the U.P. Electricity Supply Code, 2005 permits the licensee to supply electricity to other consumers from a connection already given to an existing consumer. ¶ 1
2. Where the licensee shares an existing consumer's service line under Clause 4.29, it must still ensure that supply to that original consumer is not affected. ¶ 1

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.29

sharing of existing consumer's service line with other consumers

HOLDING

Supply of electricity to other consumers from the connection given to an existing consumer is permissible under Clause 4.29 of the U.P. Electricity Supply Code, 2005. The licensee's conduct in giving such connections from the petitioner's cable was not defective. The licensee must, however, ensure that while doing so, supply of electricity to the original consumer is not affected. ¶ 1

FLAG Court cited Clause 4.29 without specifying sub-clause (a) or (b).

PRINCIPLE TAGS

sharing-of-existing-consumer-s-service-line-with-other-consumers Clause 4.29 of the U.P. Electricity Supply Code, 2005 permits a distribution licensee to give supply to other consumers from a connection already given to an existing consumer. The High Court found no defect in that conduct, but directed the licensee to ensure that supply to the original consumer is not affected.. ¶ 1